

The Impact of Google AI Summaries and Google AI Overviews on Publishers' Revenue and Media Freedom

Implications for the Information Ecosystem and Democratic Resilience in the European Union

KEY FINDINGS

A structural shift. Google AI Overviews are changing how citizens access public-interest information online. Users increasingly receive synthesised answers within Google's own interface without visiting publisher websites, shifting attention and commercial value away from the original source and towards the platform.

Traffic and revenue effects. The available evidence points in a consistent direction: AI-generated summaries reduce visits to publishers' websites. Behavioural research documents a sharp drop in click-through rates whenever an AI Overview appears, a pattern that industry studies consistently corroborate. Media leaders also expect a substantial further decline in search referral traffic over the coming years. European evidence remains thinner because rollout came later, but similar pressures are likely to emerge, with smaller, regional and minority-language publishers especially exposed.

A democratic-resilience problem. The issue has a structural dimension that copyright and revenue disputes alone cannot capture. AI-generated summaries may reduce the visibility of competing editorial framings and reinforce existing hierarchies of source visibility, making this, at its core, a media-pluralism and democratic-resilience problem.

Gaps in the current framework. The current EU framework contains significant gaps. The Artificial Intelligence Act does not provide inference-stage transparency; the Text and Data Mining opt-out system is fragmented and difficult to use in practice; there is no clear remuneration mechanism for publisher content used in AI-generated summaries; Article 15 of the Copyright in the Digital Single Market Directive (CDSM) remains legally uncertain in the AI Overview context; and European Media Freedom Act (EMFA) safeguards do not address AI-mediated traffic diversion in the discovery layer.

The need for legislative action. Competition enforcement creates important momentum but cannot replace legislative action. The most immediate priorities are to strengthen parliamentary oversight, obtain greater transparency from Google, bring forward targeted reform of the copyright framework, assess whether the European Media Freedom Act requires updating to address AI-mediated content use, and establish regular EU-level monitoring.



Context and Scope

When a citizen searches for news on Google today, the answer may come directly from Google's own interface, without any click reaching the publisher that produced it. AI Overviews represent a structural shift in how information is accessed online and how its value is distributed. This briefing examines what that shift means for the economic sustainability of independent journalism, for media pluralism, and for democratic resilience in the European Union.

The issue is not confined to copyright. It concerns a structural change in the way public-interest information is accessed online. As AI-generated summaries are increasingly integrated into search interfaces, users may obtain synthesised answers without visiting the underlying publisher websites. This marks a significant change in how citizens encounter information, moving from a model in which users select among multiple sources to one in which an AI-generated synthesis is presented directly on Google's own page. That shift may affect the economic sustainability of professional journalism, with consequences for the distribution of traffic, user attention and advertising revenue on which many publishers continue to depend.

Recent parliamentary work has addressed related aspects of this evolving landscape. The workshop on generative AI and copyright organised by the Committee on Legal Affairs (JURI),¹ the subsequent own-initiative report on copyright and generative artificial intelligence,² the hearing held by the Committee on Culture and Education (CULT) on the implementation of the European Media Freedom Act,³ and the Policy Department's briefing on the Commission's Democracy Shield Communication⁴ have all made important contributions. They have not, however, addressed in a direct and focused way the specific implications of AI-mediated search for the economic conditions that sustain independent journalism and, through them, for media pluralism and democratic resilience.

This briefing therefore considers whether the current EU framework is adequately equipped to respond to the impact of AI-generated search summaries on media freedom, pluralism and the economic conditions that sustain independent journalism. It identifies the main regulatory tools currently available, the gaps that remain, and possible avenues for policy intervention at Union level.

How Google AI Overviews Work

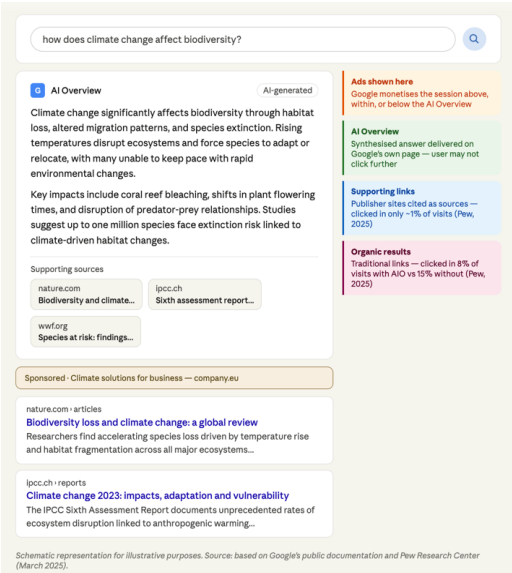
The Technical Mechanism

Google's public documentation explains that AI Overviews use a customised Gemini model in conjunction with Google's existing Search systems, including its ranking systems and the Knowledge Graph.⁵ Their function is to provide an AI-generated summary in response to a query, together with links that allow users to explore supporting web content. Google also states that AI Overviews and AI Mode may use a "query fan-out" technique, issuing multiple related searches across subtopics and data sources while a response is being generated.⁶ Pages shown as supporting links must already be indexed and eligible to appear in Google Search.⁷

From a legal and economic perspective, it is useful to distinguish between two stages. The first concerns the development and improvement of generative AI systems and related machine-learning technologies. The second concerns the generation of a specific response to a user query within Search. Google’s documentation explains that AI features are a core and inseparable part of how Search works, while distinguishing them from some other Google systems for which separate controls, including Google-Extended, may be relevant.⁸ That distinction matters because the legal issues raised by model development are not identical to those raised by the generation of a summary in response to a specific query. The legal implications of that distinction are examined in the copyright and regulatory analysis that follows.

In practical terms, AI Overviews occupy a prominent position on the search results page and may affect how users interact with underlying sources. Google’s advertising documentation states that ads may appear above, below or within AI Overviews on Search, and that Google uses existing signals and systems to determine when those placements occur.⁹ The feature is designed to provide an immediate answer within Google’s own interface, potentially reducing the need for users to click through to publisher websites.

Google AI Overview response: illustrative representation



Source: AI generated (Claude, Anthropic 2026).

The best currently available evidence on user behaviour remains limited and largely US-based, but it is still significant. Pew Research Center analysed 68,879 Google searches conducted by 900 U.S. adults in March 2025 and found that users who encountered an AI summary clicked on a traditional search result in **8% of visits**, compared with **15%** where no AI summary appeared.¹⁰ They clicked a link within the AI summary itself in only **1% of visits**, and **26%** of visits to pages with an AI summary were followed by the end of the browsing session.¹¹ These findings do not by themselves establish revenue effects in European markets, but they do indicate why publishers regard AI-generated summaries as a material threat to referral traffic. The implications may also extend beyond traffic effects. Emerging research in information retrieval suggests that the design of AI-generated search summaries may shape how users access information, adopt it, and engage with the sources to which it is attributed.¹²

BOX 1: HOW AI OVERVIEWS MAY SHIFT VALUE WITHIN SEARCH	
Step 1 Content creation.	A publisher invests in original journalistic content, including research, verification, writing and editorial oversight.
Step 2 Crawling and visibility.	Publishers generally allow Google to crawl and index their content in order to remain discoverable in Search.
Step 3 Response generation.	When Google’s systems determine that an AI Overview is useful, Search may generate a synthesised response. Google states that AI Overviews may use a “query fan-out” technique and display supporting links from indexed pages.

Step 4 On-platform answer. The user may receive a substantial part of the sought information directly on Google's results page, together with supporting links, without necessarily visiting the underlying publisher website.

Step 5 Monetisation and traffic effects. Google ads may appear above, below or within AI Overviews. This means that a search session may be monetised on Google's page while the publisher receives reduced traffic or no visit from that query.

Net result: AI Overviews can shift part of the informational and commercial value of journalistic content from the publisher's website to the search interface itself. The policy issue is whether the current framework provides adequate safeguards for media pluralism, publisher sustainability and fair allocation of value in this altered search environment.

The Limits of Opt-Out in Practice

For publishers seeking to limit the use of their content in AI-generated search summaries, the primary legal tool currently available is the right to opt out under Article 4 of the CDSM Directive. In other words, AI companies may use publicly available content to train their systems unless the rightholder explicitly refuses, using technically recognisable signals. For content made publicly available online, rightholders may reserve their rights by machine-readable means, including metadata and website terms and conditions.¹³ Google's own documentation, however, makes clear that the relevant controls differ depending on what the content is being used for. For AI features in Search, Google states that AI is built into Search and that site owners must rely on Googlebot-based crawling rules and Search preview controls such as *nosnippet*, *data-nosnippet*, *max-snippet* or *noindex* (described in the table below).¹⁴ By contrast, Google-Extended is a separate identifier that publishers can use to manage whether content crawled by Google may be used for training future generations of Gemini models and for generating responses in certain Google AI products. Google also states that Google-Extended does not affect a site's inclusion in Google Search and is not used as a ranking signal.¹⁵

In practice, this means that the ability to refuse AI-related uses is partial and fragmented rather than straightforward. A publisher may block Google-Extended without losing inclusion in Google Search, but that does not switch off AI Overviews in Search. Conversely, the only controls that directly limit AI Overview use are those that also reduce or eliminate a page's visibility in Google Search more broadly. In other words, a publisher cannot opt out of AI Overviews while remaining fully present in ordinary Search results. Google also states that *noindex* must be implemented through a meta tag or HTTP header and that specifying *noindex* in *robots.txt* is not supported.¹⁶

The result is not a simple yes-or-no choice over a single use. It is a set of technical controls with different consequences for search visibility, previews and model-related uses. That complexity helps explain the concern reflected in the European Commission's December 2025 antitrust investigation,¹⁷ namely whether Google has based AI Overviews and AI Mode on web publishers' content without appropriate compensation and without giving publishers a practical possibility to refuse such use without risking access to Google Search. The same concern is also reflected in the European Publishers Council's formal complaint of February 2026.¹⁸ This view is borne out by recent empirical evidence: publishers that blocked LLM crawlers via *robots.txt* experienced an average decline of approximately 10% in total website traffic in the weeks following blocking, suggesting that technical opt-out carries a material commercial cost.¹⁹

Article 4(3) of the CDSM Directive requires a machine-readable reservation of rights (opt-out), but it does not prescribe a single EU-wide technical standard for expressing that reservation. In practice, different operators use different identifiers and controls, as illustrated by Google-Extended, OpenAI's GPTBot and

OAI-SearchBot, Anthropic's ClaudeBot and Claude-SearchBot, and Common Crawl's CCBot.²⁰ Current controls are also primarily forward-looking. Google's public documentation explains how site owners can manage future crawling, indexing and previews, but it does not set out a general retroactive mechanism for removing material that may already have been used in model training.²¹

Publishers who wish to prevent the use of their content in AI-generated search summaries face a fragmented and asymmetric set of controls. The table below sets out the options currently available, what each one does, and what each one leaves unaddressed.

Table 1: Publisher opt-out controls for AI-related uses – scope and limits

Control available to publishers	What it does	What it does NOT do
Google-Extended (opt-out token)	Blocks use of content for training future Gemini models and certain Vertex AI products.	Does NOT switch off AI Overviews in Search. A publisher can block Google-Extended without losing inclusion in Google Search, but AI Overviews continue to operate.
nosnippet / max-snippet (Search preview controls)	Limits or removes the text preview shown below a search result. Reduces the length of extracts displayed on the results page.	Does NOT block AI Overviews directly. Limiting snippet display may reduce eligibility to appear as a supporting link within an AI Overview, since pages must be eligible to show a snippet in Search to be cited there.
noindex (page removal from index)	Removes the page entirely from Google Search indexing. The page will not appear in any search results.	Results in complete loss of all Search visibility, including organic traffic. This is the only control that prevents AI Overview use, at the cost of all discoverability. Must be implemented via meta tag or HTTP header; noindex in robots.txt is not supported by Google.
robots.txt (crawler-level controls)	Can instruct specific crawlers (e.g. Googlebot) not to access content. Google-Extended can be blocked separately via robots.txt.	Does not apply uniformly to all AI-related uses. Blocking Googlebot removes content from all Search products. Blocking only Google-Extended does not prevent AI Overviews.

Commercial Partnerships and the Risk of a Two-Tier Ecosystem

Alongside the opt-out architecture, Google has expanded a network of commercial partnerships with publishers and other content providers.²² In December 2025, Google stated that, in the preceding years, it had partnered with more than 3,000 publications, platforms and content providers in over 50 countries, paying for "extended display rights and content delivery methods like APIs."²³ Google also announced a pilot commercial partnership program with selected publishers, including Der Spiegel, El País, Folha de S. Paulo, Infobae, Kompas, The Guardian, The Times of India, The Washington Examiner and The Washington Post, to experiment with AI-powered article overviews on participating publications' Google News pages and with audio briefings.²⁴ Google has separately entered into an agreement with The Associated Press to provide a real-time information feed to enhance results in the Gemini app.²⁵ The public record does not disclose the commercial terms of these arrangements in any detail.²⁶ Nor does it establish, on the basis of currently available evidence, that participation in such arrangements affects ranking, citation, or prominence in AI Overviews or AI Mode. What it does show is the emergence of a differentiated commercial environment in

which some publishers are able to secure paid or product-specific arrangements, while others remain subject only to the general opt-out framework. In a market where many publishers depend heavily on Google Search traffic, that asymmetry may reinforce disparities in bargaining power and market visibility.²⁷

This issue is directly relevant to the concerns now under examination at EU level. The European Commission's December 2025 investigation is examining whether Google may have used web publishers' content for AI purposes under unfair trading conditions, while the European Publishers Council's February 2026 complaint contends that publishers face no realistic way to resist AI-related uses of their content without jeopardising search visibility.²⁸

Google's Preferred Sources feature should be kept analytically distinct from these commercial arrangements. According to Google's own announcement, Preferred Sources is a Search feature that allows users to customise the Top Stories module so that they see more from sources they value.²⁹ The same announcement discussed, separately, the commercial partnership pilot and other changes relating to links in Gemini, AI Overviews and AI Mode. On the public evidence currently available, it would not be accurate to describe Preferred Sources as a licensing-based pathway to preferred citation in AI Overviews.³⁰

Editorial Incentives and Generative Search Optimisation

A further consequence of AI-generated search summaries may lie in the incentives they create for content production. As generative search becomes a more important gateway to information, publishers and other content producers have growing reason to adapt content for selection, synthesis and citation by AI systems, a practice increasingly described as Generative Engine Optimisation (GEO).³¹ The available evidence suggests that generative search may reward content that is easier for machines to analyse, justify and reuse in synthesised answers, without establishing that more resource-intensive journalism is systematically excluded.³²

For media policy, the concern is therefore not only traffic loss, but editorial adaptation. If visibility in AI-mediated search increasingly depends on content being readily extractable and compressible, publishers may face additional pressure to privilege formats that travel well in generative systems over formats that are slower, more resource-intensive or less easily reduced to concise answer fragments. That risk matters in a sector where media leaders expect search referrals to decline sharply as AI summaries and answer engines expand.³³ Over time, if these incentives consolidate, they could affect not only the distribution of attention but also the range of journalistic formats that remain economically viable.

The Economic Impact: Evidence, Scale and Differential Exposure

The Empirical Record

The available evidence is now broad enough to support a clear directional conclusion: AI-generated search summaries are associated with lower click-through rates to external sites and with higher levels of zero-click behaviour.³⁴ At the same time, the record remains methodologically heterogeneous. It combines direct user-behaviour research, Search Engine Optimization (SEO) and analytics studies, publisher-level disclosures, and network traffic data reported by third-party measurement firms. Google disputes claims of aggregate collapse and states that total organic click volume from Search to websites has remained "relatively stable" year over year.³⁵ The strongest directly observed evidence comes from Pew Research Center. In a March 2025 dataset covering 68,879 Google searches by 900 U.S. adults, users clicked on a traditional search result in 8% of visits to pages with an AI summary, compared with 15% of visits to pages without one.³⁶ Links within the AI summary itself were clicked in only 1% of visits, and 26% of visits to pages with an AI summary were followed by the end of the browsing session, compared with 16% for pages showing only traditional results.³⁷

Industry studies point in the same direction. Ahrefs, analysing 300,000 keywords using aggregated Google Search Console data, estimated that by December 2025 AI Overview presence was associated with an

approximately 58% reduction in position-one click-through rates; the same study found that average position-one Click-Through Rate (CTR) for informational keywords had fallen from 0.076 in December 2023 to 0.039 in December 2025.³⁸ Seer Interactive, analysing 3,119 informational and educational queries across 42 organisations, likewise found substantial CTR declines where AI Overviews were present, including a drop in organic CTR for AI Overview (AIO) queries from 1.76% in June 2024 to 0.61% in September 2025, and a drop in paid CTR from 19.70% to 6.34% over the same period.³⁹ Academic evidence corroborates these industry findings: a study tracking daily traffic across US news publishers estimates a decline of approximately 13 per cent following August 2024, compared to a retail control group.⁴⁰ Network and publisher-level reporting reinforces the same general pattern, although the underlying evidence is more fragmented and less uniform than the large-sample behavioural and CTR studies. In particular, publicly reported figures point to rising zero-click behaviour, declining search referrals, and, in some cases, substantial traffic losses for publishers, with inferred consequences for advertising and subscription revenue where publishers depend heavily on search-driven discovery.⁴¹ Looking ahead, the Reuters Institute's 2026 survey of 280 media leaders in 51 countries found that publishers expect traffic from search engines to fall by 43% over the coming years.⁴² These materials do not establish a single uniform rate of loss, still less a single EU-wide revenue figure. They do, however, support a robust directional finding: AI-generated answers are associated with reduced volumes of clicks and referrals reaching third-party sites, with particularly strong effects on informational and evergreen queries and on publishers that remain heavily dependent on search-led discovery. Selected publicly reported examples are set out in Table 2.

Table 2: Selected publicly reported indicators of traffic or revenue decline⁴³

Publisher / Source	Documented Traffic or Revenue Loss
Business Insider	55% decline in organic search traffic between April 2022 and April 2025; 21% staff cut announced in May 2025. ⁴⁴
HuffPost	About 50% decline in desktop and mobile search referrals over the same period, as reported using Similarweb data. ⁴⁵
Forbes	Approx. 50% year-on-year traffic decline in July 2025, as reported in an industry compilation. ⁴⁶
Washington Post	Reported traffic decline ranging from 19% to 40%, depending on the period measured. ⁴⁷
NBC News	Approx. 42% year-on-year traffic decline, as reported in an industry compilation. ⁴⁸
Mail Online (DMG Media)	Desktop CTR reportedly fell from about 13% to below 5%, and mobile CTR from about 20% to 7%, when an AI Overview appeared. ⁴⁹
Stereogum (music blog)	Founder reported a 70% drop in advertising revenue, attributed in substantial part to AI search, while also noting the role of social-platform changes. ⁵⁰
Chegg (education)	Non-subscriber traffic reportedly fell 49% year on year in January 2025; antitrust suit filed in February 2025. ⁵¹
News sector aggregate	News-related zero-click searches reportedly rose from 56% in May 2024 to nearly 69% in May 2025; visits from search to news sites fell from over 2.3 billion to under 1.7 billion over the same period. ⁵²

The European Picture: A Later Start, Not a Protected Market

The current European picture is thinner and more mixed than the U.S. record. That is not surprising. Google began rolling out AI Overviews in the European Economic Area in March 2025, starting with nine countries, and announced a much wider expansion to more than 200 countries and territories and more than 40 languages in May 2025.⁵³ European evidence therefore lags the U.S. evidence chronologically, and present measurements may still understate medium-term exposure. Some available indicators suggest that the aggregate effect on European news traffic has so far been more limited than many expected, as reported by industry observers.⁵⁴ That more cautious picture should not, however, be confused with evidence of low long-term exposure. Google's rollout has continued to widen. Some category-specific and publisher-specific indicators already point to material harm where AI-generated answers are more visible, as shown by the complaint filed in the European Commission by the Independent Publishers Alliance, which alleged significant harm to publishers in the form of traffic, readership and revenue loss.⁵⁵ The more plausible reading is therefore that Europe has experienced a later and more uneven rollout, not that it is insulated

from the same structural pressures. This matters because the burden is unlikely to fall evenly across the sector. If the same pattern extends as AI Overviews become more deeply embedded in European search markets, smaller and more search-dependent publishers are likely to face the greatest exposure. That is an issue of economic sustainability and media pluralism at the same time.

The Press Publishers' Right: Scope and Open Questions

When Google's AI Overview summarises a news article and presents the answer directly on its search page, the publisher may receive reduced traffic from that query and, under the current framework, has no clearly established automatic remuneration mechanism for that use. The key legal question is whether EU law already gives press publishers a right to authorise or refuse such uses and, where the conditions are met, to seek remuneration or other remedies. The most relevant instrument is Article 15 of the CDSM Directive, which grants press publishers, in relation to the online use of their press publications by information society service providers, the rights provided for in Articles 2 and 3(2) of the InfoSoc Directive.⁵⁶ The protection does not apply to private or non-commercial uses by individual users, to acts of hyperlinking, or to the use of individual words or very short extracts of a press publication.⁵⁷ It also expires two years after publication, calculated from 1 January of the year following the date on which the press publication is published.⁵⁸ Article 15 protects the way journalistic content is expressed and presented, not the underlying facts or information it reports. The central question is therefore whether, in a given case, an AI-generated answer reproduces or makes available protected expressive elements of a press publication in a way that goes beyond individual words or very short extracts. The Directive itself sets no quantitative threshold for "very short extracts". Recital 58 acknowledges that the use of very short extracts does not undermine publishers' investments, but equally requires that the exclusion be interpreted in a way that does not affect the effectiveness of the right. Training and output-stage uses should also be kept distinct. Article 4 of the CDSM Directive provides an exception or limitation for reproductions and extractions for the purposes of text and data mining; that exception also applies in relation to Article 15 rights, unless the rightholder has expressly reserved its rights (opt-out). The Directive further clarifies that lawful access includes content made freely available online and that, for content made publicly available online, reservation of rights should be expressed by machine-readable means.⁵⁹ The Commission's AI Act guidance likewise states that providers of General-Purpose AI (GPAI) models under Article 53(1)(c) must have policies in place to identify and comply with rights reservations under the text-and-data-mining exception.⁶⁰

The more difficult issues arise beyond training. In its resolution of 10 March 2026 on copyright and generative artificial intelligence, the European Parliament took the position that rights holders should have full control over uses beyond AI training, including inference and retrieval-augmented generation, and suggested that the Commission explore whether ancillary rights for press publishers and related rights for the news sector should be extended to cover those purposes.⁶¹ That resolution does not settle those questions, but it is an important institutional signal that Parliament does not regard **inference-stage** and **retrieval-stage** uses as exhausted by the current training debate.

For the purposes of this briefing, the most relevant legal uncertainty is therefore narrower than a general debate on AI and copyright. It is whether the retrieval, synthesis and presentation of current press content in AI-generated search answers can, in particular cases, amount to an online use of protected press publications that falls within Article 15 and outside the scope of the applicable exceptions. The preliminary reference in Case C-250/25, *Like Company v Google Ireland Limited*, lodged on 3 April 2025, is the first CJEU case to raise Article 15 DSM issues in a generative AI setting.⁶² It may help clarify the existing framework, but it also underlines that legislative clarification remains a live possibility.

Media Freedom and Democratic Resilience: The Structural Argument

Media Pluralism as a Constitutional Value

The AI Overview issue concerns more than revenue allocation between technology companies and media businesses. At its core, it raises questions about the conditions under which democratic societies secure access to diverse, independently produced information. Where the economic basis of professional journalism is weakened on a sustained basis, the effects are not confined to the balance sheets of publishers. They may also affect the quality, diversity and independence of the information environment on which informed public participation depends. The concern, in other words, is not censorship in the traditional sense, but the possibility that editorial intermediation is displaced by a commercially designed system whose choices are neither transparent nor publicly accountable.⁶³

The European Union has invested significantly in the supply-side conditions of media pluralism, including press freedom safeguards, editorial independence protections under the European Media Freedom Act, and various forms of support for local and regional media.⁶⁴ By contrast, the demand-side question of how citizens actually encounter, select and access information has historically attracted less direct regulatory attention, in part because search and discovery were long understood as relatively open gateways to a plurality of sources. In the earlier search environment, users typically encountered multiple links from different publishers and exercised their own judgement in deciding which sources to consult. AI-generated search summaries change that architecture by presenting a synthesised answer within a single interface, according to criteria that remain only partly visible to the public.

The European Parliament has already signaled the constitutional importance of this shift. In its resolution of 10 March 2026 on copyright and generative artificial intelligence, Parliament stated that freedom of the press, freedom of opinion and freedom of information must not be undermined by artificial intelligence, particularly where digital access to information increasingly takes place through search engines and AI systems.⁶⁵ That statement provides an important bridge between the copyright-focused work of the Committee on Legal Affairs and the democratic resilience concerns of the EUDS Special Committee.

The constitutional dimension of this shift has also received growing parliamentary attention beyond the Committee on Legal Affairs. On 2 March 2026, the Committee on Civil Liberties, Justice and Home Affairs held an exchange of views on the growing systemic risks posed by AI systems to media pluralism, editorial autonomy and democratic discourse, particularly in the context of AI-powered search and information curation.⁶⁶ The exchange is significant in that it situates AI-mediated search within Parliament's wider concerns about the resilience of the information environment. It confirms that the issue examined in this briefing is no longer viewed only as a copyright or competition matter, but increasingly as a question of democratic infrastructure.

Source Concentration and Framing Homogenisation

Beyond the general issue of traffic loss, two broader risks for media pluralism deserve attention. The first is source concentration. Available research suggests that a substantial share of AI Overview citations still come from sources that are already highly visible in conventional search rankings. Ahrefs reported in March 2026 that around 38% of cited URLs also appeared within the first ten results or result blocks for the same query, depending on the methodology used.⁶⁷ Even if that figure should be treated with some caution, the underlying concern is clear: AI-generated summaries may reinforce existing visibility hierarchies rather than broaden exposure to a more diverse range of sources. For smaller, regional, minority-language or specialist publishers, that creates a risk of further marginalisation in the information environment.

That risk is especially relevant in the European context, where media pluralism depends on a dense and linguistically diverse ecosystem of national, regional and local news providers. Public-interest journalism in

Europe is not produced only by large national outlets or by English-language brands. It is also produced by smaller publications serving local communities, minority-language audiences and specialised public-interest niches.⁶⁸ If AI-mediated search systematically privileges already dominant or high-authority domains, the effect may be to reduce the visibility of precisely those publishers that contribute most to local accountability and linguistic diversity. This is best understood not as an inevitable outcome, but as a structural tendency that requires policy attention.⁶⁹

The second risk is framing homogenisation. Where several legitimate editorial framings of a topic exist, reflecting different political, cultural or geographical perspectives, an AI-generated summary may present a single synthesised account. That synthesis may be useful for convenience, but it can also compress contestation and reduce the visibility of competing editorial approaches. In that sense, AI-generated summarisation is not editorially neutral merely because it is automated. It reflects choices about what to include, what to exclude, and how to order and simplify information. To the extent that these choices are made without meaningful transparency or accountability, AI-generated search may affect not only publisher revenue but also the conditions under which citizens encounter competing interpretations of public affairs.

[EUDS Commission Communication and European Parliament Draft Report: Relevance and Limits](#)

The Joint Communication on the European Democracy Shield (EUDS) of 12 November 2025 sets out a broad agenda for democratic resilience.⁷⁰ The EUDS actions are organised around four main strands⁷¹: the creation of a new European Centre for Democratic Resilience; safeguarding the integrity of the information space; strengthening institutions, fair and free elections, and free and independent media; and boosting societal resilience and citizens' engagement. In that framework, the Communication builds on the EU's existing digital and media acquis, including the Digital Services Act,⁷² the AI Act,⁷³ the European Media Freedom Act⁷⁴ and the Audiovisual Media Services Directive.⁷⁵

The EUDS draft report, published on 21 January 2026 under the rapporteurship of Tomas Tobé, likewise adopts a broad proactive planning and resilience perspective, while also presenting findings and recommendations of the EUDS Special Committee.⁷⁶ In particular, the report calls for a concrete reform agenda, centered on electoral integrity and focused on strengthening institutional capacity, accountability and crisis readiness. It also urges the proposed European Centre for Democratic Resilience to assume operational responsibility for relevant instruments and calls for greater clarity on support for operational capabilities, while giving importance to societal resilience through independent media, civil society and media literacy.

Both documents are therefore highly relevant to the present briefing, but they approach AI primarily through the lens of manipulation, foreign information interference, platform accountability and democratic preparedness. They do not directly address the distinct problem examined here, namely the structural commercial effects of AI-mediated search on the economic conditions that sustain professional journalism. That absence should not be understood as a flaw in the Communication or the draft report. It reflects the fact that the European Democracy Shield was conceived primarily to address deliberate threats to democratic resilience, whereas AI-generated search summaries raise an additional question about disintermediation, value capture and media sustainability within the information ecosystem itself. It is that more specific gap that this briefing seeks to address.

[The EMFA Hearing of 2 December 2025: Scope Assessment](#)

The public hearing on the implementation of the European Media Freedom Act, held by the Committee on Culture and Education on 2 December 2025, was concerned with the practical application of the EMFA framework.⁷⁷ According to the official programme, its focus lay on three issues: the role of media regulators and the practical application of the EMFA, the impact of the EMFA on the safety and independence of

journalists and on the functioning of the media sector, and the EMFA's future impact on the digital media space and EU media regulation more broadly.

That focus was subsequently reflected in the Commission's guidelines under Article 18 EMFA, published on 6 February 2026.⁷⁸ Those guidelines concern the declaration functionality through which media service providers can declare that they meet the relevant Article 18 conditions, as well as the procedures to be followed by Very Large Online Platforms (VLOPs) when they intend to remove journalistic content. The Commission's accompanying press release explains that the guidelines are designed to help VLOPs implement the declaration functionality, to guide media providers in completing and handling their declarations, and to set out procedures for consultation with regulatory authorities where doubts arise.⁷⁹

For the purposes of this briefing, the key point is one of scope. Article 18 EMFA introduces safeguards against unjustified removal of journalistic content by VLOPs, including advance notice, reasons for removal, and a 24-hour period for the media provider to respond. Those safeguards address directly the scenario for which Article 18 was designed. They do not, however, directly address the distinct effect produced by AI-generated search summaries, where the content is not removed but may lose traffic and commercial relevance because the user's informational need is satisfied before reaching the publisher's page. The official hearing materials and the subsequent guidelines confirm that the operative focus remained on removal-related safeguards and declaration procedures, not on AI-mediated traffic diversion.

The conclusion is therefore limited but important. The EUDS Special Committee's examination of AI Overviews is not duplicative of the CULT hearing on EMFA implementation. The two exercises address related but different problems. The EMFA hearing focused on platform removal and the protection of recognised media providers on VLOPs; this briefing addresses the separate question whether AI-mediated search calls for additional safeguards where content remains online but is economically displaced within the discovery layer.

The Copyright and AI Act Framework: What Exists, What Is Missing

The Text and Data Mining Exceptions: Structure and Limits

Directive (EU) 2019/790 on Copyright in the Digital Single Market introduced two text-and-data-mining provisions: a mandatory exception for research organisations and cultural heritage institutions under Article 3, and a broader exception or limitation available to any beneficiary under Article 4, provided that the work or other subject matter has been lawfully accessed and that rightholders have not reserved their rights in an appropriate manner (opt-out).⁸⁰ For content made publicly available online, the Directive states that such reservation should normally be expressed by machine-readable means, including metadata and terms and conditions.⁸¹

On the Commission's reading of the CDSM framework, Article 4 is presented as in principle capable of covering commercial AI training on publicly available online content, subject to lawful access and a valid reservation of rights,⁸² a reading that has attracted scholarly debate.⁸³ The Commission's own guidance explains that the general TDM exception applies to all beneficiaries in relation to content to which they have lawful access, including content made publicly available online.⁸⁴

The difficulties arise less from the existence of Article 4 than from the way the reservation-of-rights system operates in practice. At present, the infrastructure is fragmented and burdensome. Google distinguishes between Googlebot-based controls for Search and the separate Google-Extended token for future Gemini training and certain grounding uses.⁸⁵ OpenAI uses separate robots.txt tags for GPTBot and OAI-SearchBot.⁸⁶ Anthropic distinguishes among ClaudeBot, Claude-User and Claude-SearchBot.⁸⁷ Common Crawl uses CCBot.⁸⁸ The result is not a single interoperable EU mechanism, but a patchwork of service-specific identifiers and controls, which is especially difficult for smaller publishers, individual creators and

rightholders without dedicated technical capacity to manage effectively. The Commission itself acknowledged the implementation problem when, on 1 December 2025, it launched a stakeholder consultation on protocols for reserving rights from text and data mining under the AI Act and the GPAI Code of Practice.⁸⁹ A second unresolved issue concerns the distinction between training and inference-stage uses. As noted above, Google's own documentation states that AI Overviews and AI Mode may use a "query fan-out" technique and may surface supporting links drawn from indexed pages.⁹⁰ The legal question is whether such retrieval-and-synthesis processes, which occur when a user submits a query rather than during model training, are fully covered by the existing TDM framework or whether output-stage uses require separate legal analysis.⁹¹ The current Parliament resolution on copyright and generative AI takes the view that the same copyright-related obligations should apply *mutatis mutandis* to subsequent uses of content for inference, retrieval-augmented generation and fine-tuning. That position goes beyond acknowledging a gap: it signals strong parliamentary pressure for broader coverage of inference and retrieval stage uses. The issue is also directly relevant to the ongoing Commission investigation and to the pending Case C-250/25.

A third structural limit is that Article 4, like most copyright exceptions, does not create a statutory remuneration right. Unlike the regime for private copying, where rightholders are entitled to fair compensation, uses falling within Article 4 may proceed without any payment obligation under the Directive, provided the content has been lawfully accessed and no effective reservation of rights has been made.⁹² From the perspective of press publishers, this differs from the logic of Article 15 CDSM, which was designed to address certain uncompensated online uses of press publications by information society service providers.⁹³ Whether a similar logic should be extended, in some form, to AI-mediated uses is a policy question rather than a point already settled by current law.

A final problem concerns proof and transparency. Under the existing framework, publishers often face serious practical difficulty in showing whether, and in what way, their specific content has been used in training, grounding or inference-related processes. Current EU transparency obligations for general-purpose AI models remain oriented primarily toward summaries of training content rather than item-level disclosure. This is one reason why the European Parliament, in its March 2026 resolution, called for itemised transparency and for a rebuttable presumption of use in relation to copyright-protected content.⁹⁴

The table below summarises the three CDSM provisions relevant to AI-generated search summaries. They operate at different levels and have different beneficiaries. The core gap they share is that none of them squarely addresses what happens after training: when an AI model retrieves and summarises published content in real time, query by query, as AI Overviews do.

Table 3: CDSM provisions relevant to AI-generated search summaries

Legal basis	What it covers	Key limit in the AI Overview context
Art. 3 CDSM	Text and data mining by research organisations and cultural heritage institutions.	Applies only to non-commercial research; not relevant to commercial AI training.
Art. 4 CDSM	Text and data mining by any party (including commercial AI providers) on lawfully accessed content.	Applies to training; does NOT clearly cover inference-stage or retrieval-stage uses; no remuneration right for publishers.
Art. 15 CDSM	Online use of press publications by digital platforms.	May apply to AI-generated summaries in some cases; scope uncertain; no quantitative threshold defined for "very short extracts".

The EU AI Act: Transparency Obligations and Their Limits

Article 53(1)(d) of the AI Act requires providers of general-purpose AI models to make publicly available a sufficiently detailed summary of the content used for training the model.⁹⁵ To support implementation of that obligation, the Commission published its Explanatory Notice and Template for the Public Summary of Training Content for general-purpose AI models on 24 July 2025, ahead of the date on which the GPAI obligations became applicable, namely 2 August 2025.⁹⁶ The template is intended to provide a common minimal baseline for public disclosure.

This is a meaningful transparency step, but it does not amount to item-level disclosure. The Commission explains that the template requires a public overview of the training data, including information on the data sources used, such as publicly available datasets and data scraped from online sources, as well as certain relevant data-processing aspects.⁹⁷ That may help parties with legitimate interests exercise their rights under EU law, but it does not generally enable an individual publisher to verify, on the basis of the public summary alone, whether specific publications or specific protected items were included in the training corpus.

The European Parliament's resolution of 10 March 2026 also directly addresses this limitation. In recital Y, Parliament calls for transparency to consist of "an itemised list identifying each item of copyright-protected content used for training", and states that the same requirement should apply *mutatis mutandis* to subsequent uses, including inference, retrieval-augmented generation and fine-tuning.⁹⁸ That position goes materially beyond the current Article 53 framework and would move transparency closer to an actionable rights-enforcement mechanism.

A further limit is that the AI Act's Article 53 transparency regime is directed at GPAI models and their training-related documentation. The AI Act does not currently impose a specific disclosure obligation for the real-time retrieval and synthesis of content in AI-generated search outputs.⁹⁹ Whether, and to what extent, inference-stage retrieval should be subject to equivalent disclosure remains a live institutional question.

Finally, the enforcement architecture is more differentiated than it may first appear. The Commission makes clear that enforcement of the AI Act is divided by subject matter: national market surveillance authorities are responsible for AI systems, while the AI Office supervises and enforces the rules specifically for general-purpose AI models.¹⁰⁰ The AI Office also holds a supporting role towards national authorities in relation to AI systems more broadly. For the purposes of this briefing, the relevant point is therefore not simply fragmented national enforcement, but the fact that the present transparency framework remains limited in scope even where central supervision exists.

The EU AI Act's transparency obligations for AI training data fall significantly short of what publishers would need to verify whether their content was used and to exercise any rights arising from that use. The table below makes the gap concrete.

Table 4: AI Act transparency obligations (Art. 53) versus publisher enforcement needs

	What the AI Act currently requires (Art. 53)	What publishers need to enforce their rights
Level of detail	General public summary of training data categories and sources.	Item-level list identifying which specific publications were used.
Scope	Training data only.	Training, inference, retrieval-augmented generation, and fine-tuning.
Who benefits	General public and competent authorities.	Individual publishers seeking to verify use and claim compensation.
Enforcement value	Low: a publisher cannot verify from a public summary whether their specific content was included.	High: only item-level disclosure enables individual rights enforcement.

The GPAI Code of Practice (July 2025): A Voluntary Compliance Tool

The General-Purpose AI Code of Practice was published by the Commission on 10 July 2025 as a voluntary tool designed to help providers of general-purpose AI models comply with the AI Act's obligations on transparency, copyright, and, where relevant, safety and security. The Commission and the AI Board have assessed it as an adequate voluntary tool, and the chapters on Transparency and Copyright are expressly presented as a way for providers of GPAI models to demonstrate compliance with their Article 53 obligations.

The central legal point, however, is that the Code remains voluntary. Adherence to it is one recognised way to demonstrate compliance, but it does not create a presumption of conformity with the AI Act, and providers may seek to demonstrate compliance by other adequate means. The Commission's own Q&A states that providers who do not sign and adhere to the Code must be able to justify why their proposed alternative means of compliance are adequate.

The Code of Practice has attracted sign-up from several major AI providers, including Google, OpenAI, Anthropic, Amazon, Microsoft, and Mistral AI. The more important issue is that not all providers have signed up to the same commitments. Certain providers have adhered only to the Safety and Security Chapter, and are therefore required to demonstrate compliance with the AI Act's transparency and copyright obligations through alternative adequate means, as provided for under the applicable framework.¹⁰¹ For publishers and rights holders, the Code's voluntary nature remains a structural limitation. Key questions remain about disclosure granularity, burden of proof and the design of opt-out mechanisms.¹⁰² Some public-interest organisations have also raised concerns about the adequacy of the Code and the broader policy direction, arguing that the current framework fails to provide sufficient clarity on the interaction between copyright

Who has signed what and why it matters

The GPAI Code of Practice is voluntary. Providers can adhere to it selectively: xAI (the company behind Grok) signed only the Safety and Security Chapter and is therefore not bound by the Copyright Chapter. Major Chinese AI providers do not appear among the official signatories listed by the Commission.

This means that a publisher whose content has been used by one of these systems cannot invoke the Code to verify compliance, seek transparency, or claim redress. A voluntary code that providers can partially opt into is not a substitute for binding disclosure obligations, particularly for publishers who lack the legal resources to pursue individual enforcement actions.

protection, TDM exceptions, and public-interest AI uses.¹⁰³ Whether the Code delivers adequate practical certainty for publishers and rights holders therefore remains an open question.

The European Parliament Resolution of 10 March 2026

This section draws together, for the copyright dimension of this briefing, the elements of the European Parliament resolution of 10 March 2026 on copyright and generative artificial intelligence (2025/2058(INI)) that are most directly relevant to the concerns assessed here. The Committee on Legal Affairs adopted the draft report on 28 January 2026, and the resolution was subsequently voted in plenary on 10 March 2026.¹⁰⁴

Several elements of the resolution are of particular relevance from the perspective of publishers and media freedom. Recital Y calls for an itemised list identifying each item of copyright-protected content used for training, and extends that requirement *mutatis mutandis* to subsequent uses for inference, retrieval-augmented generation (RAG) and fine-tuning, including by providers or deployers of AI systems. Recital Y also supports a presumption that content has been crawled, including for inference and RAG purposes, where AI systems handle user queries. Paragraph 6 of the resolution affirms that rights holders must have full control over the use of their content for purposes beyond AI training, including inference and retrieval-augmented generation, and that uses beyond training should take place only with the express consent of rights holders. The Commission is additionally invited to explore how ancillary rights for press publishers, journalists and news editors, and other related rights, including for news media producers and news broadcasters, could be extended to cover those purposes. Finally, Recital P clarifies that the conclusion of new licence agreements should not be construed as redress for past unauthorised uses of copyright-protected content.

These elements substantially reinforce the parliamentary case for item-level transparency, inference-stage coverage and a stronger legal position for publishers. The resolution does not, however, definitively resolve all outstanding legislative questions, and a number of legislative drafting issues remain open pending further action by the Commission.

Competition Law: The Commission's December 2025 Investigation

The Commission's Antitrust Investigation

On 9 December 2025, the European Commission opened a formal antitrust investigation to assess whether Google may have infringed Article 102 TFEU and Article 54 of the EEA Agreement through its use of web publisher and creator content for AI purposes.¹⁰⁵ This investigation is directly relevant to the concerns examined in this briefing, as it targets the same structural relationship between Google's dominant position in search and the use of publisher and creator content for AI purposes.

The investigation has two strands. The first concerns AI Overviews and AI Mode: the Commission is examining whether Google may have used publishers' content to offer AI-powered search features without appropriate compensation and without offering publishers a meaningful possibility to refuse such use without jeopardising access to Google Search. The second concerns YouTube content: the Commission is examining whether Google may have used YouTube videos to train its own generative AI models without appropriate compensation to creators, while at the same time barring rival AI developers from accessing that content under YouTube's terms of service.

Both branches reflect the same underlying competitive concern: that Google's dominant position in search (first branch) and its exclusive control over a massive proprietary video dataset (second branch) are being leveraged to give Gemini an advantage in AI markets over competitors that lack access to comparable content.¹⁰⁶ The theory of harm is both exploitative (unfair terms imposed on publishers and creators) and exclusionary (barring rival AI developers from equivalent training inputs).¹⁰⁷

Why Article 102 TFEU Rather Than the Digital Markets Act (DMA)

The choice of Article 102 TFEU is legally significant because it can accommodate both unfair trading conditions and possible exclusionary effects within a single abuse of dominance framework. DMA scrutiny nevertheless remains relevant in parallel. On 13 November 2025, the Commission opened separate proceedings under the Digital Markets Act to assess whether Google applies fair and equitable conditions of access to publishers' websites on Google Search, focusing on possible demotion under Google's site reputation abuse policy. The present Article 102 investigation and the DMA proceedings therefore address related but distinct issues.

The EPC Formal Complaint (February 2026)

On 10 February 2026, the European Publishers Council (EPC) filed a formal antitrust complaint with the Commission directly complementing the December investigation.¹⁰⁸ The complaint alleges that Google is using publishers' journalistic content for AI Overview generation without authorisation, without effective opt-out mechanisms (given the binary of 'allow or lose search access'), and without fair remuneration, while simultaneously displacing the traffic, audiences and revenues on which professional journalism depends. The EPC further argues that the scale and speed of this displacement threaten the economic viability of professional journalism as an industry, and expressly invokes the European Democracy Shield in linking the issue to media pluralism and democratic resilience. The remedies sought, namely meaningful publisher control over AI use, transparency on content usage and traffic impact, and a fair licensing and remuneration framework, may inform the legislative and enforcement agenda considered by the Special Committee.

Enforcement Timeline and the Need for Parallel Legislative Action

Competition enforcement will not deliver an immediate remedy. Abuse of dominance investigations in fast-moving digital markets often take several years, and appeals can extend that timeline further. The December 2025 investigation is still at an early stage; in the meantime, AI-generated search summaries are likely to continue expanding, along with the structural pressures on publisher revenue and media pluralism.

This does not make competition enforcement any less important. It establishes legal momentum and places Google under formal scrutiny. Legislative action is nonetheless needed in parallel, whether through targeted amendment of the CDSM framework, updating of EMFA, or a more specific instrument on AI-mediated use of journalistic content. The two tracks are complementary, and the urgency of the problem makes pursuing both simultaneously the more appropriate response.

Mapping the Regulatory Framework: Tools, Gaps and Good Practices

Legislative Mapping

The Table 5 below maps the principal EU instruments currently relevant to AI-generated search summaries and identifies the main legal and regulatory limits of each in the AIO context.

Instrument	Relevant Provisions	Limitations in AIO Context
CDSM Directive 2019/790	Art. 15 (neighbouring right for press publishers); Arts. 3–4 (TDM exceptions)	Article 15 applicability to AI summaries remains uncertain; TDM opt-out fragmented in practice; no remuneration for Article 4 uses; inference/RAG legally unresolved.
EU AI Act 2024/1689	Art. 53 GPAI transparency obligations (training data summaries)	Summary-level, not item-level, disclosure; no inference-stage transparency; no remuneration right; limited usefulness for publisher enforcement.
GPAI Code of Practice (July 2025)	Copyright chapter: training transparency, rights reservation	Voluntary; not universally adhered to; no presumption of conformity; granularity remains contested.
Digital Services Act 2022/2065	Art. 27 (recommender systems transparency); Arts. 34–35 (VLOP systemic risks); Art. 40 (researcher data access)	No revenue-sharing rules; no AIO-specific transparency duty; no clear use yet for AIO-related media-pluralism risks.
Digital Markets Act 2022/1925	Art. 6(5) self-preferencing prohibition; Art. 6(11) FRAND access obligations	Relevant to Search and YouTube, but not designed to resolve publisher remuneration or AI-content-use disputes; DMA enforcement in adjacent areas remains ongoing.
European Media Freedom Act 2024/1083	Art. 18 (VLOP safeguards against unjustified removal; declaration functionality)	Removal-based trigger does not capture AIO traffic diversion; no AI-specific safeguards.
Art. 102 TFEU / EC investigation (Dec 2025)	Abuse of dominant position; unfair trading conditions; competitive exclusion	Investigation ongoing; enforcement may be slow; cannot substitute for legislation.

Identified Regulatory Gaps

The mapping above reveals five coherent structural gaps that collectively prevent the existing EU framework from adequately addressing the AIO phenomenon:

1. **No transparency on AIO source selection and editorial choices.** No existing instrument in the current EU framework clearly requires disclosure of the criteria governing source selection and summarisation in AI Overviews, the traffic impact of those summaries on individual publishers, or the commercial terms of bilateral licensing arrangements. This opacity limits both regulatory oversight and publishers' ability to understand or challenge how their content is used.

2. **No right to fair remuneration for AI-generated summary use.** The CDSM Directive introduced a remuneration logic for certain online uses of press content through Article 15. No clearly established statutory remuneration right exists, however, for inference-time or AI-generated summary uses in the AIO context. This remains one of the most significant legal gaps in the current framework.
3. **EMFA does not reach AI-mediated content use.** Article 18 EMFA is built around removal-related safeguards and declaration functionality for media service providers. The official hearing materials of 2 December 2025 and the Commission's subsequent guidelines remained focused on those issues, not on AI-mediated traffic diversion or economic displacement caused by AI-generated summaries.
4. **No dedicated EU-level monitoring of AI-mediated search impacts on media diversity.** Existing instruments such as the Media Pluralism Monitor assess broader vulnerabilities affecting media pluralism, but they do not provide structured, dedicated monitoring of the relationship between AI search deployment, publisher revenue and editorial output. Without such monitoring, legislative and regulatory responses are harder to calibrate.
5. **Fragmented opt-out infrastructure with no EU standard.** The absence of an interoperable EU-level standard for reserving rights means that publishers face a landscape of incompatible crawler identifiers and service-specific controls, cannot rely on any single technical mechanism, and cannot easily verify whether their signals are being respected. The current model also places the burden of refusal on rightholders rather than on prior consent, a design choice that remains contested.¹⁰⁹

Comparative Reference Points

Other jurisdictions offer useful, if still incomplete, reference points for the EU debate. These experiences suggest three recurring lessons. First, voluntary and purely market-based arrangements have often proved unstable or insufficient. Second, bargaining frameworks can improve outcomes, but may remain vulnerable where platforms can reduce, reshape or withdraw news-related uses. Third, the most directly relevant emerging responses are those that address AI-generated search features themselves, rather than news aggregation or search snippets more broadly.

France (*enforcement-dependent model*)

France is relevant less as an autonomous legislative model than as an implementation and enforcement example within the EU framework. Following the French law of 24 July 2019 on related rights for press agencies and publishers,¹¹⁰ the Autorité de la concurrence imposed interim measures against Google in April 2020,¹¹¹ found that Google had failed to comply with those measures and imposed a first fine of EUR 500 million in July 2021;¹¹² accepted binding commitments proposed by Google in June 2022;¹¹³ and then fined Google a further EUR 250 million in March 2024 for non-compliance with four of the seven commitments made binding by the 2022 decision.¹¹⁴ The March 2024 decision is the fourth in four years, and it is notable for finding that Google had used press publishers' content to train Bard without notifying publishers or the Autorité.¹¹⁵ The French experience suggests that neighbouring rights may require sustained competition enforcement and information-sharing obligations to become operational in practice. It also shows the limits of the model in the AIO context: the agreements remained contested, the negotiations were opaque, and the underlying framework was developed for news aggregation rather than AI-generated search summaries.

Australia (*mandatory bargaining model*)

Australia adopted a different architecture through the News Media and Digital Platforms Mandatory Bargaining Code.¹¹⁶ The Code establishes a bargaining framework with mediation and final-offer arbitration as a backstop. It initially produced voluntary commercial agreements between platforms and a significant number of news businesses, without any formal designation being made.¹¹⁷ However, the durability of that

outcome has since been called into question: Meta stopped renewing its agreements with Australian publishers in 2024, and Google reduced its funding agreements with Australian publishers in 2025, declining to renew certain deals while maintaining others.¹¹⁸ In response, the Australian government announced a News Bargaining Incentive designed to strengthen the existing framework by removing the possibility for platforms to avoid their obligations by withdrawing from news altogether.¹¹⁹ The Australian experience therefore illustrates both the potential and the structural fragility of a threat-based bargaining model: it can catalyse initial agreements, but it does not guarantee sustained compliance or adequate remuneration as platforms reassess their commercial interests.

Canada (*mandatory bargaining model*)

Canada enacted the Online News Act, which establishes a framework intended to encourage platforms and news businesses to reach voluntary agreements and, failing that, provides for mandatory bargaining backed by final-offer arbitration.¹²⁰ Its implementation produced two sharply divergent outcomes. Meta chose to block all news content in Canada rather than negotiate, stating that ending news availability was ‘the only way we can reasonably comply with this legislation’.¹²¹ Google, by contrast, reached a lump-sum payment agreement with Canadian news organisations and was granted a five-year exemption from the Act’s mandatory bargaining requirements.¹²² For EU policy design, the Canadian experience is instructive precisely because it demonstrates that a mandatory bargaining framework does not guarantee participation: a sufficiently powerful platform can comply by withdrawing from the relevant content market entirely, neutralising the remuneration objective without violating the letter of the law.

United Kingdom (*most directly relevant: AIO-specific transparency*)

The UK Competition and Markets Authority published in January 2026 a set of proposed measures specifically addressing the use of publisher content in Google’s AI Overviews.¹²³ The proposals were issued under the Digital Markets, Competition and Consumers Act 2024,¹²⁴ following Google’s designation as a firm with strategic market status in general search services in October 2025.¹²⁵ Once finalised, the conduct requirements will be legally binding and enforceable with sanctions. The proposed measures include publisher opt-out rights covering AI Overviews without loss of organic search visibility, transparency obligations on source selection and content use, and proper attribution of publisher content in AI results. The consultation closed in February 2026, and Google has since indicated that it is developing controls to allow sites to opt out of generative AI features in Search specifically.¹²⁶ Unlike the French and Australian models, which were developed in response to news aggregation and search snippets, the CMA proposals target the AIO layer directly, and currently constitute the closest existing regulatory precedent for the kind of AIO-specific obligations discussed in this briefing.

Lesson for EU policy

The comparative picture does not yet provide a single settled model for AI-generated search summaries. It does, however, point to three elements that appear increasingly important: transparency on what content is used and how; a meaningful opt-out that does not require publishers to sacrifice general search visibility; and some form of effective economic safeguard where AI-mediated search diverts traffic and value from news producers. On the present record, the UK proposals are the closest to addressing the AIO layer directly, while the French, Australian and Canadian experiences mainly illustrate the strengths and limits of enforcement and bargaining-based approaches developed for broader platform uses of news content. That comparative gap strengthens the case for targeted EU action rather than reliance on existing models alone.

Table 6: Comparative overview of national responses to AI-mediated content use

Jurisdiction	Model	Key feature	Does it cover AI Overviews specifically?	Main limitation
France	Competition enforcement of neighbouring rights	Binding commitments backed by fines (EUR 500m in 2021; EUR 250m in 2024)	No: designed for news aggregation and snippets	Framework not designed for AI-generated summaries; negotiations opaque; protracted non-compliance by Google
Australia	Mandatory bargaining code with arbitration backstop	Threat of designation initially prompted voluntary commercial agreements	No: designed for search and social platforms broadly	Both Meta and Google have since reduced or withdrawn agreements; government announced a News Bargaining Incentive to address framework limitations
Canada	Mandatory bargaining backed by final-offer arbitration	Google reached a lump-sum deal and obtained a five-year exemption; Meta blocked all news rather than negotiate	No: designed for news access broadly	A platform can comply by withdrawing from news entirely, neutralising the remuneration objective without violating the law
United Kingdom	CMA proposed conduct requirements under DMCC Act 2024	Direct proposals on publisher opt-out rights and transparency over AI Overview content use; legally binding once finalised	Yes: first jurisdiction to target AI Overviews directly	No remuneration mechanism; conduct requirements not yet finalised

Policy Recommendations

The recommendations below are formulated in light of the EUDS mandate and focus on democratic resilience, media pluralism and the information ecosystem.

They are organised in two groups: actions within the EUDS Special Committee's own parliamentary remit, and actions that the Committee may invite the Commission and relevant EU bodies to take.

Actions for the EUDS Special Committee:

First, the EUDS Special Committee could include AI-mediated content displacement as a distinct structural threat to media pluralism and democratic resilience in its final report to the plenary, signalling to the Commission that Parliament considers the economic disintermediation of independent journalism as an integral part of the broader democratic resilience agenda.

Second, the Committee could request regular reporting from the Commission on the ongoing Article 102 TFEU investigation and related DMA proceedings concerning Google Search. Competition enforcement is already under way and is directly relevant to the issues examined in this briefing, but parliamentary oversight remains necessary in light of the wider implications for media freedom and democratic resilience.

Third, the Committee could invite Google to provide evidence on the operation and impact of AI Overviews in the EU. In particular, the Committee could seek greater transparency on source-selection criteria, traffic effects across Member States and publication types, the practical operation of opt-out mechanisms, and the existence and structure of publisher licensing arrangements.

Actions the Committee may invite the Commission and relevant EU bodies to take:

First, the Commission could be invited to bring forward targeted legislative proposals to address the AI value gap for press publishers. These should include a fair-remuneration mechanism for publisher content used in AI-generated search summaries, legislative clarification on the treatment of inference-stage and retrieval-augmented generation uses, and an interoperable EU-level standard for rights reservation to replace the current patchwork of service-specific identifiers. The Commission could also be invited to examine possible avenues for addressing past uses of publisher content in AI systems, given the current lack of mechanisms to verify historical ingestion or seek redress.

Second, the Commission could be invited to report to Parliament, by the end of 2026, on whether the EMFA framework is adequate to address AI-mediated content displacement, and to bring forward a legislative proposal if the assessment confirms a gap. Article 18 is built around removal-related safeguards and does not address the distinct effect produced by AI-generated search summaries, where content is not removed but loses commercial relevance because the user's informational need is satisfied before reaching the publisher's page.

Third, the European Centre for Democratic Resilience could be invited to establish a dedicated annual monitoring strand on the effects of AI-generated search on publishers' revenue, editorial diversity and media pluralism across Member States. The Centre should build on the existing infrastructure of the European Digital Media Observatory and the Media Pluralism Monitor, which already provide the cross-country comparative baseline needed. This would complement the Centre's focus on foreign information manipulation and electoral integrity without duplicating it.

List of Abbreviations

Abbreviation	Full Term
AIO	AI Overview (Google)
AEO / GEO	Answer Engine Optimisation / Generative Engine Optimisation
CDSM Directive	Directive (EU) 2019/790 on Copyright in the Digital Single Market
CTR	Click-Through Rate
DMA	Digital Markets Act (Regulation (EU) 2022/1925)
DSA	Digital Services Act (Regulation (EU) 2022/2065)
EDMO	European Digital Media Observatory
EDS / EUDS	European Democracy Shield / Special Committee on the EDS
EMFA	European Media Freedom Act (Regulation (EU) 2024/1083)
EPC	European Publishers Council
EU AI Act	Regulation (EU) 2024/1689 on Artificial Intelligence
FIMI	Foreign Information Manipulation and Interference
GPAI	General-Purpose Artificial Intelligence
JURI	Committee on Legal Affairs (European Parliament)
LLM	Large Language Model
RAG	Retrieval-Augmented Generation
TDM	Text and Data Mining
TFEU	Treaty on the Functioning of the European Union
VLOP	Very Large Online Platform

ENDNOTES

- ¹ See European Parliament, Committee on Legal Affairs (JURI), “Generative AI and copyright”, workshop held on 4 June 2025, available at: <https://www.europarl.europa.eu/committees/en/generative-ai-and-copyright/product-details/20250603WKS06402>.
- ² See European Parliament, Committee on Legal Affairs, Report on copyright and generative artificial intelligence – opportunities and challenges, A10-0019/2026, 25 February 2026, available at: https://www.europarl.europa.eu/doceo/document/A-10-2026-0019_EN.html.
- ³ See European Parliament, Committee on Culture and Education (CULT), “Implementation of the EMFA”, hearing held on 2 December 2025, available at: <https://www.europarl.europa.eu/committees/en/implementation-of-the-emfa/product-details/20251127CHE13454>.
- ⁴ See Edoardo Bressanelli, European Democracy Shield: Assessing the Commission’s Communication, PE 780.253, European Parliament, Policy Department for Justice, Civil Liberties and Institutional Affairs, December 2025, available at: https://www.europarl.europa.eu/RegData/etudes/BRIE/2025/780253/IUST_BRI%282025%29780253_EN.pdf.
- ⁵ See Google, How AI Overviews in Search work (July 2024) available at <https://static.googleusercontent.com/media/www.google.com/it//search/howsearchworks/google-about-AI-overviews.pdf>; Google Search Central, AI features and your website, last updated 10 December 2025, available at <https://developers.google.com/search/docs/appearance/ai-features>.
- ⁶ See Google Search Central, AI features and your website, section “How AI features work in Search”, last updated 10 December 2025, available at: <https://developers.google.com/search/docs/appearance/ai-features>.
- ⁷ See Google Search help, Find information in faster & easier ways with AI Overviews in Google Search, available at <https://support.google.com/websearch/answer/14901683?hl=en#zippy=%2Chow-to-control-your-data>.
- ⁸ See Google Search Central, AI features and your website, section “Controlling your content in AI features in Search”, last updated 10 December 2025, available at: <https://developers.google.com/search/docs/appearance/ai-features>.
- ⁹ See Google Ads Help, Google Search Central, About ads and AI Overviews, available at <https://support.google.com/google-ads/answer/16297775?hl=en>.
- ¹⁰ See Athena Chapekis and Anna Lieb, Google users are less likely to click on links when an AI summary appears in the results, (July 22, 2025), Pew Research Center, available at <https://www.pewresearch.org/short-reads/2025/07/22/google-users-are-less-likely-to-click-on-links-when-an-ai-summary-appears-in-the-results/>.
- ¹¹ Ibidem.
- ¹² See Alice Li, “The impact of generative AI search result design on user perceptions and information adoption,” in Proceedings of the 2026 Conference on Human Information Interaction and Retrieval (CHIIR ’26), ACM, 2026, 399-404, available at <https://dl.acm.org/doi/10.1145/3786304.3787937>.
- ¹³ See Directive (EU) 2019/790 of the European Parliament and of the Council of 17 April 2019 on copyright and related rights in the Digital Single Market, OJ L 130, 17 May 2019, pp. 92–125, Art. 4(3); see also recital 18, stating that, in the case of content made publicly available online, reservation of rights should be made by machine-readable means, including metadata and website terms and conditions, available at: <https://eur-lex.europa.eu/eli/dir/2019/790/oj/eng>.
- ¹⁴ See Google Search Central, AI features and your website, section “Controlling your content in AI features in Search”, last updated 10 December 2025, available at: <https://developers.google.com/search/docs/appearance/ai-features>; Google Search Central, Block Search indexing with noindex, last updated 10 December 2025, available at: <https://developers.google.com/search/docs/crawling-indexing/block-indexing>.
- ¹⁵ see Google, Google’s common crawlers, last updated 11 February 2026, available at: <https://developers.google.com/crawling/docs/crawlers-fetchers/google-common-crawlers>.
- ¹⁶ See Google Search Central, AI features and your website, section “Technical requirements for appearing in AI features”, last updated 10 December 2025, available at <https://developers.google.com/search/docs/appearance/ai-features>; see also Google Search Central, Block Search indexing with noindex, , available at: <https://developers.google.com/search/docs/crawling-indexing/block-indexing>.
- ¹⁷ See European Commission, Commission opens investigation into possible anticompetitive conduct by Google concerning the use of online content for AI purposes, Press release IP/25/2964, 9 December 2025, available at: https://ec.europa.eu/commission/presscorner/detail/en/ip_25_2964.
- ¹⁸ European Publishers Council, European Publishers Council files formal antitrust complaint against Google over AI Overviews and AI Mode, 10 February 2026, available at: <https://www.epceurope.eu/post/european-publishers-council-files-formal-antitrust-complaint-against-google-over-ai-overviews-and-ai> (stating that publishers face an “untenable choice” because, in its view, opting out of AI use would in practice entail a loss of search visibility that most publishers cannot afford). See also Madhavi Singh and Fiona M. Scott Morton, A Roadmap for a Monopolization Case Against Google: Monopsony Power and AI Overviews (31 January 2026),

forthcoming in University of Pennsylvania Law Review, vol. 175, available at <https://ssrn.com/abstract=6303280> (arguing that Google denies publishers any meaningful possibility to refuse AI-related uses without forfeiting search visibility, and analysing this structure as unlawful monopolization, tying, and, in the EU context, potentially exploitative abuse and unfair conditions).

¹⁹ See Hangcheng Zhao & Ron Berman, The Impact of LLMs on Online News Consumption and Production (Feb. 10, 2026) (SSRN Working Paper No. 5992774) at 12-15, available at <https://ssrn.com/abstract=5992774>

²⁰ OpenAI, Overview of OpenAI Crawlers, available at: <https://developers.openai.com/api/docs/bots>; Anthropic, Does Anthropic crawl data from the web, and how can site owners block the crawler?, available at: <https://support.claude.com/en/articles/8896518-does-anthropic-crawl-data-from-the-web-and-how-can-site-owners-block-the-crawler>; Common Crawl, CCBot, available at: <https://commoncrawl.org/ccbot>.

²¹ Google Search Central, AI features and your website, section "Controlling your content in AI features in Search" available at <https://developers.google.com/search/docs/appearance/ai-features>; Google Search Central, Block Search indexing with noindex available at <https://developers.google.com/search/docs/crawling-indexing/block-indexing>; Google, Things to know about Google's web crawling, last updated 3 March 2026, available at <https://developers.google.com/crawling/docs/about-crawling>.

²² See Robby Stein and Jaffer Zaidi, Supporting the web with new features and partnerships, 10 December 2025, Available at <https://blog.google/products-and-platforms/products/search/tools-partnerships-web-ecosystem/>.

²³ Ibidem.

²⁴ Ibidem.

²⁵ Jaffer Zaidi, Working with The Associated Press to provide fresh results for the Gemini app, 15 January 2025, Available at <https://blog.google/products-and-platforms/products/news/associated-press-gemini-app/>.

²⁶ See Matt O'Brien, Google signs deal with AP to deliver up-to-date news through its Gemini AI chatbot, AP News, 16 January 2025, available at <https://apnews.com/article/google-gemini-ai-associated-press-ap-0b57bcf8c80dd406daa9ba916adacfaf>.

²⁷ See Singh and Scott Morton, A Roadmap for a Monopolization Case Against Google, cit. (arguing that Google's use of publisher data for additional and economically significant purposes, including AI training and grounding, without corresponding compensation alters the earlier symbiotic relationship between Google and publishers and strengthens Google's monopsony power over publisher data).

²⁸ See European Commission, Commission opens investigation into possible anticompetitive conduct by Google concerning the use of online content for AI purposes, Press release IP/25/2964, 8 December 2025, available at https://ec.europa.eu/commission/presscorner/detail/en/ip_25_2964; European Publishers Council, European Publishers Council files formal antitrust complaint against Google over AI Overviews and AI Mode, 10 February 2026, Available at <https://www.epceurope.eu/post/european-publishers-council-files-formal-antitrust-complaint-against-google-over-ai-overviews-and-ai>.

²⁹ Google, Preferred Sources in Top Stories is now available in English to all users around the world, The Keyword, 16 December 2025, Available at <https://blog.google/feed/preferred-sources-expands/>

³⁰ See Robby Stein and Jaffer Zaidi, Supporting the web with new features and partnerships, 10 December 2025, Available at <https://blog.google/products-and-platforms/products/search/tools-partnerships-web-ecosystem/>.

³¹ See e.g. Pranjal Aggarwal, et al., GEO: Generative Engine Optimization, KDD 2024: Proceedings of the 30th ACM SIGKDD Conference on Knowledge Discovery and Data Mining, 5-16, available at <https://doi.org/10.1145/3637528.3671900>.

³² See Mahe Chen, et al., Generative Engine Optimization: How to Dominate AI Search, arXiv:2509.08919, 10 September 2025, available at <https://arxiv.org/abs/2509.08919>.

³³ See Nic Newman, Journalism and Technology Trends and Predictions 2026, Reuters Institute for the Study of Journalism, January 2026, available at https://reutersinstitute.politics.ox.ac.uk/sites/default/files/2026-01/Trends_and_Predictions_2026.pdf.

³⁴ See Athena Chapekis and Anna Lieb, Google users are less likely to click on links when an AI summary appears in the results, (July 22, 2025), Pew Research Center, available at <https://www.pewresearch.org/short-reads/2025/07/22/google-users-are-less-likely-to-click-on-links-when-an-ai-summary-appears-in-the-results/>; 2025 Organic Traffic Crisis: Zero-Click & AI Impact Analysis Report, BLOOM (Oct. 30, 2025), available at <https://thedigitalbloom.com/learn/2025-organic-traffic-crisis-analysis-report/>.

³⁵ See Liz Reid, AI in Search is driving more queries and higher quality clicks, 6 August 2025, available at <https://blog.google/products-and-platforms/products/search/ai-search-driving-more-queries-higher-quality-clicks/>.

³⁶ See Athena Chapekis and Anna Lieb, Google users are less likely to click on links when an AI summary appears in the results, cit.

³⁷ Ibidem.

³⁸ Ryan Law and Xibeiijia Guan, "Update: AI Overviews Reduce Clicks by 58%", 4 February 2026, available at <https://ahrefs.com/blog/ai-overviews-reduce-clicks-update/>.

³⁹ See Tracy McDonald, "AIO Impact on Google CTR: September 2025 Update," 4 November 2025, available at Seer Interactive <https://www.seerinteractive.com/insights/aio-impact-on-google-ctr-september-2025-update>.

⁴⁰ See Hangcheng Zhao & Ron Berman, The Impact of LLMs on Online News Consumption and Production, cit.

⁴¹ The figures summarised in this sentence are drawn from the publicly reported indicators set out in Table 2 below. Each entry is sourced and cited individually within the table.

⁴² See Nic Newman, Journalism and Technology Trends and Predictions 2026, Reuters Institute for the Study of Journalism, cit.; See also Gerrit De Vynck, "Google's AI-generated answers might pose a monopoly problem," The Washington Post, 26 February 2025, available at <https://www.washingtonpost.com/politics/2025/02/26/chegg-google-suit-ai-answers-search-antitrust/>.

⁴³ The table reports selected publicly reported indicators. These figures are illustrative of direction and scale, but they do not establish a uniform rate of loss across publishers or markets.

⁴⁴ See Isabella Simonetti and Katherine Blunt, "News Sites Are Getting Crushed by Google's New AI Tools," Wall Street Journal, 10 June 2025, available at <https://www.wsj.com/tech/ai/google-ai-news-publishers-7e687141>.

⁴⁵ Ibidem.

⁴⁶ See 2025 Organic Traffic Crisis: Zero-Click & AI Impact Analysis Report, BLOOM (Oct. 30, 2025), available at <https://thedigitalbloom.com/learn/2025-organic-traffic-crisis-analysis-report/>.

⁴⁷ Ibidem.

⁴⁸ Ibidem.

⁴⁹ See Danny Goodwin, "Shocking 56% CTR drop: AI Overviews gut MailOnline's search traffic," Search Engine Land, 14 May 2025, available at <https://searchengineland.com/google-ai-overviews-mail-online-ctr-drop-455393>.

⁵⁰ See Scott Lapatine, "Getting Killed By AI," Stereogum, 10 November 2025, available at <https://stereogum.com/2478838/stereogum-relaunch/tcb>

⁵¹ See Jody Godoy, Google's AI previews erode the internet, US edtech company says in lawsuit, Reuters, February 25, 2025, available at <https://www.reuters.com/legal/googles-ai-previews-erode-internet-edtech-company-says-lawsuit-2025-02-24/>.

⁵² See Sarah Perez, "Google Discover adds AI summaries, threatening publishers with further traffic declines," TechCrunch, 15 July 2025, available at <https://techcrunch.com/2025/07/15/google-discover-adds-ai-summaries-threatening-publishers-with-further-traffic-declines/>.

⁵³ Hema Budaraju, AI Overviews are now available in over 200 countries and territories, and more than 40 languages, Google, (May 20, 2025) available at <https://blog.google/products-and-platforms/products/search/ai-overview-expansion-may-2025-update/>; Hema Budaraju, We're bringing the helpfulness of AI Overviews to more countries in Europe, Google, (Mar 25, 2025) Available at <https://blog.google/feed/were-bringing-the-helpfulness-of-ai-overviews-to-more-countries-in-europe/>.

⁵⁴ See Stefan ten Teije, Google's AI Overview is not yet harming traffic, but publishers should remain alert, International News Media Association (11 August 2025) available at: <https://www.inma.org/blogs/big-data-for-news-publishers/post.cfm/google-s-ai-overview-is-not-yet-harming-traffic-but-publishers-should-remain-alert>.

⁵⁵ See Foo Yun Chee, Exclusive: Google's AI Overviews hit by EU antitrust complaint from independent publishers, Reuters, 4 July 2025, available at: <https://www.reuters.com/legal/litigation/googles-ai-overviews-hit-by-eu-antitrust-complaint-independent-publishers-2025-07-04/>.

⁵⁶ Directive (EU) 2019/790 of the European Parliament and of the Council of 17 April 2019 on copyright and related rights in the Digital Single Market, OJ L 130, 17 May 2019, Art. 15(1) and (4), and recital 58, available at: <https://eur-lex.europa.eu/eli/dir/2019/790/oj/eng>. Article 15(1) grants press publishers the rights provided for in Articles 2 and 3(2) of Directive 2001/29/EC for the online use of press publications by information society service providers; it excludes hyperlinking and the use of individual words or very short extracts; Article 15(4) provides that the protection expires two years after publication, calculated from 1 January of the following year.

⁵⁷ Ibidem.

⁵⁸ Ibidem.

⁵⁹ Directive (EU) 2019/790, Art. 4(1) and (3). See also European Commission, Copyright Reform: Questions and Answers, section "What is the purpose of the other, general, text and data mining exception?", stating that the general TDM exception "is applicable to all beneficiaries regarding content to which they have lawful access, including content publicly available online", available at: <https://digital-strategy.ec.europa.eu/en/faqs/copyright-reform-questions-and-answers>.

⁶⁰ See European Commission, Navigating the AI Act, available at: <https://digital-strategy.ec.europa.eu/en/faqs/navigating-ai-act>.

⁶¹ See European Parliament resolution of 10 March 2026 on copyright and generative artificial intelligence, P10_TA(2026)0066, paras. P, Y, 6 and 12, (stating that the same copyright requirements should apply mutatis mutandis to subsequent uses for inference, retrieval-augmented generation or fine-tuning, and suggesting that the Commission explore whether ancillary rights for press publishers and related rights should be extended to cover such purposes), available at: https://www.europarl.europa.eu/doceo/document/TA-10-2026-0066_EN.html.

⁶² See Case C-250/25, Like Company v Google Ireland Limited, request for a preliminary ruling from the Budapest Körményi Törvényszék lodged on 3 April 2025, official notice published in the Official Journal, available via EUR-Lex at: <https://eur-lex.europa.eu/legal-content/EN/CASE/?uri=CELEX:62025CN0250>. For doctrinal analysis of the legal questions referred, see T. W. Dornis and N. Lucchi, Generative AI and the Scope of EU Copyright Law: A Doctrinal Analysis in Light of the Referral in Like Company v. Google, IIC 56 (2025), 1800–1840.

⁶³ See Singh and Scott Morton, A Roadmap for a Monopolization Case Against Google, cit. (arguing that the anticompetitive exclusion of publishers is not merely a loss of competition in an ordinary product market, but a threat to the sustainability of independent journalism essential to democratic governance).

⁶⁴ Regulation (EU) 2024/1083 of the European Parliament and of the Council of 11 April 2024 establishing a common framework for media services in the internal market and amending Directive 2010/13/EU (European Media Freedom Act), OJ L, 2024/1083, 17 April 2024.

⁶⁵ See European Parliament resolution of 10 March 2026 on copyright and generative artificial intelligence, P10_TA(2026)0066, available at: https://www.europarl.europa.eu/doceo/document/TA-10-2026-0066_EN.html.

⁶⁶ European Parliament, Committee on Civil Liberties, Justice and Home Affairs (LIBE), Exchange of Views on Artificial Intelligence and Media Pluralism, 2 March 2026, available at: <https://www.europarl.europa.eu/committees/en/exchange-of-views-on-ai-risks-and-media-/product-details/20260224CAN76579>.

⁶⁷ See Louise Linehan and XibeiJia Guan, Update: 38% of AI Overview Citations Pull From Top 10 Pages, AhRefs Blog, 2 March 2026, available at: <https://ahrefs.com/blog/ai-overview-citations-top-10/>.

⁶⁸ See Council of Europe, "Community media", available at <https://www.coe.int/en/web/freedom-expression/community-media>, (recognising community media as a source of local content, cultural and linguistic diversity, media pluralism, social inclusion and intercultural dialogue); see also Council of Europe, European Charter for Regional or Minority Languages (ETS No 148, 5 November 1992) (aimed at safeguarding and promoting the use of regional and minority languages, including in the media).

⁶⁹ On the democratic relevance of media pluralism and the distribution of influence across the information environment, see Council of Europe, Recommendation CM/Rec(2018)11 on media pluralism and transparency of media ownership.

⁷⁰ See European Commission and High Representative of the Union for Foreign Affairs and Security Policy, Joint Communication to the European Parliament, the Council, the European Economic and Social Committee and the Committee of the Regions, European Democratic Shield: Empowering Strong and Resilient Democracies, JOIN(2025) 791 final, 12 November 2025, available at: <https://eur-lex.europa.eu/legal-content/EN/TXT/?uri=CELEX:52025JC0791>.

⁷¹ See European Parliament, Legislative Train Schedule, European Democracy Shield (EDS), available at: <https://www.europarl.europa.eu/legislative-train/package-european-democracy-action-plan/file-european-democracy-shield>.

⁷² Regulation (EU) 2022/2065 of the European Parliament and of the Council of 19 October 2022 on a Single Market For Digital Services and amending Directive 2000/31/EC (Digital Services Act), OJ L 277, 27.10.2022, pp. 1–102, available at: <https://eur-lex.europa.eu/eli/reg/2022/2065/oj/eng>.

⁷³ Regulation (EU) 2024/1689 of the European Parliament and of the Council of 13 June 2024 laying down harmonised rules on artificial intelligence and amending Regulations (EC) No 300/2008, (EU) No 167/2013, (EU) No 168/2013, (EU) 2018/858, (EU) 2018/1139 and (EU) 2019/2144 and Directives 2014/90/EU, (EU) 2016/797 and (EU) 2020/1828 (Artificial Intelligence Act), OJ L, 2024/1689, 12.7.2024, available at: <https://eur-lex.europa.eu/eli/reg/2024/1689/oj/eng>.

⁷⁴ Regulation (EU) 2024/1083 of the European Parliament and of the Council of 11 April 2024 establishing a common framework for media services in the internal market and amending Directive 2010/13/EU (European Media Freedom Act), OJ L, 2024/1083, 17.4.2024, available at: <https://eur-lex.europa.eu/eli/reg/2024/1083/oj/eng>.

⁷⁵ Directive 2010/13/EU of the European Parliament and of the Council of 10 March 2010 on the coordination of certain provisions laid down by law, regulation or administrative action in Member States concerning the provision of audiovisual media services (Audiovisual Media Services Directive), OJ L 95, 15.4.2010, pp. 1–24, available at: <https://eur-lex.europa.eu/eli/dir/2010/13/oj/eng>.

⁷⁶ Draft Report on the findings and recommendations of the Special Committee on the European Democracy Shield, PE775.431v01-00 (EUDS, 18 Dec. 2025) (report by Tomas Tobé), available at https://www.europarl.europa.eu/doceo/document/EUDS-PR-775431_EN.pdf.

⁷⁷ See European Parliament, Committee on Culture and Education (CULT), Public hearing on the implementation of the European Media Freedom Act, Brussels, 2 December 2025, programme and materials available at: <https://www.europarl.europa.eu/committees/en/implementation-of-the-emfa-/product-details/20251127CHE13454>

⁷⁸ See European Commission, Communication from the Commission, *Commission guidelines on the implementation of the declaration functionality for media service providers pursuant to Article 18(1) of Regulation (EU) 2024/1083 (European Media Freedom Act)*, OJ C, C/2026/901, 11 February 2026: <http://data.europa.eu/eli/C/2026/901/oj>.

⁷⁹ European Commission, Commission Issues Guidelines to Protect Media Content on Online Platforms, Press Release, (6 February 2026) available at <https://digital-strategy.ec.europa.eu/en/news/commission-issues-guidelines-protect-media-content-online-platforms>.

⁸⁰ See Directive (EU) 2019/790 of the European Parliament and of the Council of 17 April 2019 on copyright and related rights in the Digital Single Market, OJ L 130, 17.5.2019, Arts 3 and 4, and recital 18.

⁸¹ Directive (EU) 2019/790, Art. 4(3) and Recital 18.

⁸² See e.g. European Commission, Call for Tenders for a Feasibility Study on aEnd Central Registry of Opt-Outs Under the Text and Data Mining (TDM) Exception (Jan. 23, 2025), <https://digital-strategy.ec.europa.eu/en/funding/call-tenders-feasibility-study->

[central-registry-opt-outs-under-text-and-data-mining-tdm-exception](#) (describing TDM opt-outs as an “essential mechanism” for rightsholders to reserve rights, particularly in AI model training).

⁸³ See e.g. E. Rosati, Is Text and Data Mining Synonymous with AI Training?, 19 J. Intell. Prop. L. & Prac. 851, (2024) T. W. Dornis, The Training of Generative AI is not Text and Data Mining, 47 EIPR 65 (2025); E. Alonso and N. Lucchi, AI and Copyright “Hallucinations”: Does the Text and Data Mining Exception Really Support Generative AI Training?, 47 EIPR 915 (2025).

⁸⁴ See European Commission, Copyright Reform: Questions and Answers, section on the general text-and-data-mining exception, explaining that the exception applies to all beneficiaries regarding content to which they have lawful access, including content publicly available online, available at: <https://digital-strategy.ec.europa.eu/en/faqs/copyright-reform-questions-and-answers>.

⁸⁵ See Google Search Central, “Google’s common crawlers and fetchers”, explaining that Googlebot is used for Search indexing while Google-Extended is a standalone product token used to control the use of content for Gemini training and certain AI-related uses, without affecting inclusion in Search, available at: <https://developers.google.com/search/docs/crawling-indexing/google-common-crawlers>.

⁸⁶ See OpenAI, “Overview of OpenAI Crawlers”, describing GPTBot (used for training models) and OAI-SearchBot (used for search-related features), and explaining that website operators can control them separately via robots.txt, available at: <https://platform.openai.com/docs/bots>

⁸⁷ See Anthropic, “Does Anthropic crawl data from the web, and how can site owners block the crawler?”, explaining the different identifiers used by Anthropic, including ClaudeBot (training crawler), Claude-User and Claude-SearchBot, and how they can be controlled via robots.txt, available at: <https://support.anthropic.com/en/articles/8896518-does-anthropic-crawl-data-from-the-web-and-how-can-site-owners-block-the-crawler>.

⁸⁸ See Common Crawl Foundation, “CCBot”, describing the web crawler used to collect publicly available web data for the Common Crawl dataset, available at: <https://commoncrawl.org/ccbot>.

⁸⁹ See European Commission, Commission launches consultation on protocols for reserving rights from text and data mining under the AI Act and the GPAI Code of Practice, consultation page, published 1 December 2025, available at: <https://digital-strategy.ec.europa.eu/en/consultations/commission-launches-consultation-protocols-reserving-rights-text-and-data-mining-under-ai-act-an>.

⁹⁰ See supra § “The Technical Mechanism”.

⁹¹ On the further unresolved status of inference-stage and retrieval-augmented generation uses, see N. Lucchi, Generative AI and Copyright: Training, Creation, Regulation, PE 774.095 (European Parliament, JURI, July 2025), at 37–47 available at [https://www.europarl.europa.eu/thinktank/en/document/IUST_STU\(2025\)774095](https://www.europarl.europa.eu/thinktank/en/document/IUST_STU(2025)774095).

⁹² On the absence of a statutory remuneration framework for training-data uses under Art. 4 CDSM and proposals for rights-based compensation mechanisms, see N. Lucchi, ‘ChatGPT: A Case Study on Copyright Challenges for Generative Artificial Intelligence Systems’, 15 EJRR (2024), 602–624, at 619.

⁹³ See Directive (EU) 2019/790, Art. 15.

⁹⁴ See European Parliament resolution of 10 March 2026 on copyright and generative artificial intelligence, P10_TA(2026)0066, available at: https://www.europarl.europa.eu/doceo/document/TA-10-2026-0066_EN.html.

⁹⁵ Article 53(1)(d) of the AI Act (requiring providers of general-purpose AI models to “draw up and make publicly available a sufficiently detailed summary about the content used for training of the general-purpose AI model, according to a template provided by the AI Office”).

⁹⁶ See European Commission, Explanatory Notice and Template for the Public Summary of Training Content for general-purpose AI models, published 24 July 2025, available at: <https://digital-strategy.ec.europa.eu/en/library/explanatory-notice-and-template-public-summary-training-content-general-purpose-ai-models>.

⁹⁷ European Commission, Template for general-purpose AI model providers to summarise their training content, FAQ, available at: <https://digital-strategy.ec.europa.eu/en/faqs/template-general-purpose-ai-model-providers-summarise-their-training-content>.

⁹⁸ See European Parliament resolution of 10 March 2026 on copyright and generative artificial intelligence, P10_TA(2026)0066, Y available at: https://www.europarl.europa.eu/doceo/document/TA-10-2026-0066_EN.html.

⁹⁹ See N. Lucchi, Generative AI and Copyright: Training, Creation, Regulation, PE 774.095 (European Parliament, JURI, July 2025), §2.5 (concluding that the AI Act’s transparency obligations do not resolve core copyright challenges because they lack mechanisms for traceability, auditability, or individual rights enforcement).

¹⁰⁰ See European Commission, General-Purpose AI Models in the AI Act – Questions & Answers, available at <https://digital-strategy.ec.europa.eu/en/faqs/general-purpose-ai-models-ai-act-questions-answers> (citing Articles 75 and 88 AI Act).

¹⁰¹ It should be noted that, for example, xAI signed only the Safety and Security Chapter of the Code, and is therefore required to demonstrate compliance with the AI Act’s transparency and copyright obligations through alternative adequate means. Major Chinese AI providers do not appear among the official signatories listed by the Commission.

- ¹⁰² See N. Lucchi, *Generative AI and Copyright: Training, Creation, Regulation*, PE 774.095 (European Parliament, JURI, July 2025), §4.2 and §4.6, (arguing that the fragmented and voluntary nature of current compliance tools necessitates a transition to enforceable disclosure obligations with public oversight).
- ¹⁰³ See Teresa Nobre and Justus Dreyling, *INI on copyright and generative AI: Final assessment and recommendation*, (26 January 2026), available at <https://communia-association.org/2026/01/26/ini-copyright-genai-final-assessment/>.
- ¹⁰⁴ See European Parliament resolution of 10 March 2026 on copyright and generative artificial intelligence, P10_TA(2026)0066, available at: https://www.europarl.europa.eu/doceo/document/TA-10-2026-0066_EN.html.
- ¹⁰⁵ European Commission, Press Release IP/25/2964, Commission opens investigation into possible anticompetitive conduct by Google concerning the use of online content for AI purposes, 9 December 2025, available at: https://ec.europa.eu/commission/presscorner/detail/en/ip_25_2964.
- ¹⁰⁶ See Singh and Scott Morton, *A Roadmap for a Monopolization Case Against Google*, cit. (contending that conditioning inclusion in the search index on the use of publisher data for AI-related purposes constitutes unlawful monopolization and illegal tying, and that the same conduct may also amount, in jurisdictions including the European Union, to exploitative abuse through unfair pricing or the imposition of unfair conditions).
- ¹⁰⁷ On the doctrinal foundations of liability for AI training uses, see T.W. Dornis, J.C. Ginsburg and N. Lucchi, *GEMA v. OpenAI* (Munich I Regional Court, 2025): *Doctrinal, Comparative, and International Perspectives on Copyright and Generative AI*, 81 *JuristenZeitung* (2026), 235–246 (arguing that the judgment confirms unlicensed generative training falls outside TDM protection).
- ¹⁰⁸ See supra note 18.
- ¹⁰⁹ See N. Lucchi, *Generative AI and Copyright: Training, Creation, Regulation*, PE 774.095 (European Parliament, JURI, July 2025), §4.2, at 120–121.
- ¹¹⁰ Loi n. 2019-775 du 24 juillet 2019 tendant à créer un droit voisin au profit des agences de presse et des éditeurs de presse, JORF n° 0172, 26 juillet 2019, texte n° 2, available at: <https://www.legifrance.gouv.fr/loda/id/JORFTEXT000038821358>.
- ¹¹¹ Autorité de la concurrence, Decision 20-MC-01 of 9 April 2020, ordering interim measures against Google in relation to neighbouring rights for press publishers and news agencies, available at: https://www.autoritedelaconcurrence.fr/sites/default/files/integral_texts/2020-06/20-mc-01_en.pdf.
- ¹¹² Autorité de la concurrence, Decision 21-D-17 of July 12, 2021 on compliance with the injunctions issued against Google in Decision 20-MC-01 of 9 April 2020 available at <https://www.autoritedelaconcurrence.fr/en/decision/compliance-injunctions-issued-against-google-decision-20-mc-01-9-april-2020>.
- ¹¹³ Autorité de la concurrence, Decision 22-D-13 of 21 June 2022 regarding practices implemented in the press sector, available at: <https://www.autoritedelaconcurrence.fr/sites/default/files/commitments/2022-10/Decision%2022D13%20V%20EN.pdf>.
- ¹¹⁴ Autorité de la concurrence, Decision 24-D-03 of 15 March 2024 regarding compliance with commitments in Decision 22-D-13 of 21 June 2022, available at: https://www.autoritedelaconcurrence.fr/sites/default/files/attachments/2025-03/24d03_eng.pdf.
- ¹¹⁵ Ibidem.
- ¹¹⁶ Treasury Laws Amendment (News Media and Digital Platforms Mandatory Bargaining Code) Bill 2021 (Cth) No. 21 (Australia).
- ¹¹⁷ See Australian Competition and Consumer Commission, *News media bargaining code*, available at <https://www.accc.gov.au/by-industry/digital-platforms-and-services/news-media-bargaining-code/news-media-bargaining-code>.
- ¹¹⁸ Reuters Institute for the Study of Journalism, *Digital News Report 2025: Australia*, University of Oxford, available at: <https://reutersinstitute.politics.ox.ac.uk/digital-news-report/2025/australia>.
- ¹¹⁹ Australian Government, Albanese Government to Establish News Bargaining Incentive, Joint Media Release by the Assistant Treasurer and Minister for Communications, 12 December 2024, available at: <https://minister.infrastructure.gov.au/rowland/media-release/albanese-government-establish-news-bargaining-incentive>.
- ¹²⁰ Online News Act, Bill C-18, 44th Parl., S.C. 2023, c 23 (Canada).
- ¹²¹ Meta Platforms, *Changes to News Availability on Our Platforms in Canada*, Meta Newsroom, 1 August 2023, available at: <https://about.fb.com/news/2023/06/changes-to-news-availability-on-our-platforms-in-canada/>.
- ¹²² Canadian Radio-television and Telecommunications Commission, *Exemption Order from the Online News Act granted to Google*, Online News Decision CRTC 2024-262, 28 October 2024, available at: <https://crtc.gc.ca/eng/archive/2024/2024-262.htm>.
- ¹²³ See Competition and Markets Authority, *CMA Proposes Package of Measures to Improve Google Search Services in UK*, 28 January 2026, available at <https://www.gov.uk/government/news/cma-proposes-package-of-measures-to-improve-google-search-services-in-uk>.
- ¹²⁴ Digital Markets, Competition and Consumers Act 2024 (UK), c. 13, available at: <https://www.legislation.gov.uk/ukpga/2024/13/contents>.
- ¹²⁵ Competition and Markets Authority, *Google's general search and search advertising services*, 14 January 2025, available at: <https://www.gov.uk/cma-cases/googles-general-search-and-search-advertising-services>.
- ¹²⁶ Google, *Google's Response to the CMA's Consultation on Potential Requirements for Search*, Google Blog, 18 March 2026, available at: <https://blog.google/company-news/inside-google/around-the-globe/google-europe/cma-response/>.

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